



DALLAS COUNTY, TEXAS v. KENNEDY et al, Docket No. 1:25-cv-04242
(D.D.C. Dec 05, 2025), Court Docket

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U.S. District Court
District of Columbia (Washington, DC)
CIVIL DOCKET FOR CASE #: 1:25-cv-04242-CRC

DALLAS COUNTY, TEXAS v. KENNEDY et al

Date Filed: Dec 5, 2025

Nature of suit: 890 Other Statutory Actions

Assigned to: Judge Christopher R. Cooper

Cause: 28:2201 Declaratory Judgment

Jurisdiction: U.S. Government Defendant

Jury demand: None

Related cases: 1:25-cv-01275-CRC

Parties and Attorneys

Plaintiff	DALLAS COUNTY, TEXAS	
Representation	Jason G. Schuette DALLAS COUNTY DISTRICT ATTORNEY'S OFFICE Dallas County Records Building 500 Elm Street Suite 6300 Dallas, TX 75202 (214) 653-6068 Fax: (214) 653-6134 jason.schuette@dallascounty.org PRO HAC VICE ATTORNEY TO BE NOTICED	Todd Sellars DALLAS COUNTY DISTRICT ATTORNEY'S OFFICE 500 Elm Street Suite 6300 TX Dallas, TX 75202 (214) 653-6120 Fax: (214) 653-6134 tsellars@dallascounty.org Civil Division PRO HAC VICE ATTORNEY TO BE NOTICED

Rebecca S. LeGrand
LEGRAND LAW PLLC
1100 H Street NW
Suite 1220
Washington, DC 20005
(202) 587-5725
rebecca@legrandpllc.com
ATTORNEY TO BE NOTICED

Defendant	ROBERT F. KENNEDY, JR. in his official capacity as Secretary of the United States Department of Health and Human Services	
Representation	Dimitar Georgiev-Rommel <i>DOJ-USAO</i> 601 D Street NW Washington, DC 20530 (202) 252-7678 dimitar.georgiev-remmel@usdoj.gov Civil Division LEAD ATTORNEY ATTORNEY TO BE NOTICED	Zachary J. Krizel <i>DOJ-USAO</i> 601 D Street NW Washington, DC 20579 (202) 252-2518 zachary.krizel@usdoj.gov LEAD ATTORNEY ATTORNEY TO BE NOTICED

Defendant	UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES	
Representation	Dimitar Georgiev-Rommel (See above for address) LEAD ATTORNEY ATTORNEY TO BE NOTICED	Zachary J. Krizel (See above for address) LEAD ATTORNEY ATTORNEY TO BE NOTICED

Defendant	JIM O'NEILL in his official capacity as Acting Director of the Centers for Disease Control and Prevention	
Representation	Dimitar Georgiev-Rommel	Zachary J. Krizel

(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant**CENTERS FOR DISEASE CONTROL AND PREVENTION****Representation**

Dimitar Georgiev-Rommel
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Zachary J. Krizel
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Docket Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Description
1	Dec 5, 2025	COMPLAINT against CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES (Filing fee \$ 405 receipt number ADCDC-12118434) filed by DALLAS COUNTY TEXAS. (Attachments: # 1 Civil Cover Sheet, # 2 Summons, # 3 Summons, # 4 Summons, # 5 Summons, # 6 Summons, # 7 Summons)(LeGrand, Rebecca) (Entered: 12/05/2025)
2	Dec 5, 2025	NOTICE OF RELATED CASE by DALLAS COUNTY TEXAS. Case related to Case No. 1:25-cv-01275-CRC. (LeGrand, Rebecca) (Entered: 12/05/2025)
3	Dec 5, 2025	MOTION for Leave to Appear Pro Hac Vice :Attorney Name- Todd K. Sellars, Filing fee \$ 100, receipt number ADCDC-12118576. Fee Status: Fee Paid. by DALLAS COUNTY TEXAS. (Attachments: # 1 Declaration, # 2 Exhibit Certificate of Good Standing)(LeGrand, Rebecca) (Entered: 12/05/2025)
	Dec 8, 2025	Case Assigned to Judge Christopher R. Cooper. (zhcn) (Entered: 12/08/2025)
4	Dec 8, 2025	SUMMONS (6) Issued Electronically as to All Defendants, U.S. Attorney and U.S. Attorney General (Attachments: # 1 Notice and Consent)(zhcn) (Entered: 12/08/2025)
5	Dec 8, 2025	MOTION for Preliminary Injunction by DALLAS COUNTY, TEXAS. (Attachments: # 1 Memorandum in Support, # 2 Text of Proposed Order, # 3 Exhibit 1 (Huang Declaration), # 4 Exhibit A to Declaration, # 5 Exhibit B to Declaration, # 6 Exhibit C to Declaration, # 7 Exhibit D to Declaration, # 8 Exhibit E to Declaration, # 9 Exhibit F to Declaration, # 10 Exhibit G to Declaration, # 11 Exhibit H to Declaration, # 12 Exhibit I to Declaration)(LeGrand, Rebecca) (Entered: 12/08/2025)
	Dec 16, 2025	MINUTE ORDER. Pursuant to LCvR 65.1(d), Plaintiff's 5 Motion for Preliminary Injunction requests a hearing within 21 days of its filing. Yet Plaintiff has not indicated that notice of the Motion was given to Defendants, nor has Plaintiff filed proof of service of the summons and complaint. Under Fed. R. Civ. P. 65(a)(1), the Court "may

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		issue a preliminary injunction only on notice to the adverse party." And LCvR 65.1(c) contemplates that an application for a preliminary injunction be served on an opposing party before that party is obligated to respond. The Court therefore declines to schedule a hearing on the Motion (or, alternatively, to determine that a hearing outside the 21-day window will not prejudice the parties, see LCvR 65.1(d)) until service is accomplished and an opposition is filed. Signed by Judge Christopher R. Cooper on 12/16/2025. (lccrc3) (Entered: 12/16/2025)
6	Dec 16, 2025	NOTICE of Appearance by Zachary J. Krizel on behalf of All Defendants (Krizel, Zachary) (Entered: 12/16/2025)
7	Dec 18, 2025	Consent MOTION for Briefing Schedule by CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES. (Attachments: # 1 Text of Proposed Order)(Krizel, Zachary) (Entered: 12/18/2025)
	Dec 18, 2025	MINUTE ORDER granting 7 Motion for Entry of Combined Briefing Schedule. Defendants' combined motion to dismiss and motion in opposition to preliminary junction shall be due by January 16, 2026. Plaintiff's combined response to Defendants' motion to dismiss and reply in support of preliminary injunction shall be due by February 6, 2026. Defendants' further reply in support of its motion to dismiss shall be due February 20, 2026. Signed by Judge Christopher R. Cooper on 12/18/2025. (lccrc3) (Entered: 12/18/2025)
8	Dec 22, 2025	NOTICE of Appearance by Dimitar Georgiev-Rommel on behalf of CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES (Georgiev-Rommel, Dimitar) (Entered: 12/22/2025)
9	Jan 9, 2026	RETURN OF SERVICE/AFFIDAVIT of Summons and Complaint Executed. CENTERS FOR DISEASE CONTROL AND PREVENTION served on 12/22/2025; ROBERT F. KENNEDY, JR served on 12/18/2025; JIM O'NEILL served on 12/22/2025; UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES served on 12/18/2025 (Attachments: # 1 Summons HHS Executed Summons, # 2 Summons Acting Director O'Neil Executed Summons, # 3 Summons CDC Executed Summons, # 4 Summons AG Executed Summons, # 5 Summons USAO Executed Summons)(LeGrand, Rebecca) (Entered: 01/09/2026)
10	Jan 9, 2026	RETURN OF SERVICE/AFFIDAVIT of Summons and Complaint Executed as to the United States Attorney. Date of Service Upon United States Attorney on 12/23/2025. (Answer due for ALL FEDERAL DEFENDANTS by 2/21/2026.), RETURN OF SERVICE/AFFIDAVIT of Summons and Complaint Executed on United States Attorney General. Date of Service Upon United States Attorney General 12/23/2025. (See Docket Entry 9 to view document) (zjm) (Entered: 01/15/2026)
11	Jan 16, 2026	MOTION to Dismiss by CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES. (Attachments: # 1 Memorandum in Support, # 2 Text of Proposed Order)(Krizel, Zachary) (Entered: 01/16/2026)
12	Jan 16, 2026	Memorandum in opposition to re 5 MOTION for Preliminary Injunction filed by CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES. (Krizel, Zachary) (Entered: 01/16/2026)

Entry #	Filing Date	Description
13	Feb 6, 2026	RESPONSE re 11 MOTION to Dismiss and Reply in Support of Motion for Preliminary Injunction filed by DALLAS COUNTY, TEXAS. (LeGrand, Rebecca) (Entered: 02/06/2026)
14	Feb 6, 2026	REPLY to opposition to motion re 5 Motion for Preliminary Injunction, filed by DALLAS COUNTY, TEXAS. (See Docket Entry 13 to view document) (zjm) (Entered: 02/09/2026)
15	Feb 20, 2026	MOTION to Stay by CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES. (Attachments: # 1 Text of Proposed Order)(Krizel, Zachary) (Entered: 02/20/2026)
16	Feb 20, 2026	Consent MOTION for Extension of Time to File Response/Reply by CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES. (Attachments: # 1 Text of Proposed Order)(Krizel, Zachary) (Entered: 02/20/2026)
	Feb 23, 2026	MINUTE ORDER. The plaintiff is directed to respond to the government's 15 Motion to Stay by no later than March 6, 2026. The government's deadline to file its reply in support of its 11 Motion to Dismiss is suspended until the Court has resolved the 15 stay motion. Signed by Judge Christopher R. Cooper on 2/23/2026. (lccrc3) (Entered: 02/23/2026)
17	Mar 6, 2026	RESPONSE re 15 MOTION to Stay filed by DALLAS COUNTY, TEXAS. (LeGrand, Rebecca) (Entered: 03/06/2026)
18	Mar 13, 2026	REPLY to opposition to motion re 15 Motion to Stay filed by CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES. (Krizel, Zachary) (Entered: 03/13/2026)
	Apr 17, 2026	MINUTE ORDER. The government is hereby ORDERED to file its final reply brief in support of its 11 Motion to Dismiss by April 24, 2026. The parties are further ORDERED to appear at 10:00 AM on May 14, 2026 in Courtroom 27A before Judge Christopher R. Cooper for a combined hearing on the pending motions, including the government's 15 Motion to Stay proceedings in this case. Signed by Judge Christopher R. Cooper on 4/17/2026. (lccrc3) (Entered: 04/17/2026)
19	Apr 17, 2026	MOTION for Leave to Appear Pro Hac Vice :Attorney Name- Jason G. Schuette, Filing fee \$ 100, receipt number ADCDC-12367682. Fee Status: Fee Paid. by DALLAS COUNTY, TEXAS. (Attachments: # 1 Declaration, # 2 Exhibit Certificate of Good Standing)(LeGrand, Rebecca) (Entered: 04/17/2026)
	Apr 17, 2026	MINUTE ORDER. In light of the Court's Minute Order filed earlier today, which sets the deadline for the government's reply brief in support of its 11 Motion to Dismiss, the government's 16 request for an extension of time to file its reply brief is now moot. Signed by Judge Christopher R. Cooper on 4/17/2026. (lccrc3) (Entered: 04/17/2026)
	Apr 19, 2026	MINUTE ORDER granting 3 Motion for Leave to Appear Pro Hac Vice Counsel should register for e-filing via PACER and file a notice of appearance pursuant to LCvR 83.6(a) Click for instructions. Signed by Judge Christopher R. Cooper on 4/19/2026. (lccrc3) (Entered: 04/19/2026)
	Apr 19, 2026	MINUTE ORDER granting 19 Motion for Leave to Appear Pro Hac Vice Counsel

Entry #	Filing Date	Description
		should register for e-filing via PACER and file a notice of appearance pursuant to LCvR 83.6(a) Click for instructions. Signed by Judge Christopher R. Cooper on 4/19/2026. (lccrc3) (Entered: 04/19/2026)
20	Apr 23, 2026	Consent MOTION for Extension of Time to File Response/Reply by CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES. (Attachments: # 1 Text of Proposed Order)(Krizel, Zachary) (Entered: 04/23/2026)
	Apr 27, 2026	MINUTE ORDER granting 20 Motion for Extension of Time to File Response/Reply. Defendants' reply brief in support of their 11 Motion to Dismiss is due by April 28, 2026. Signed by Judge Christopher R. Cooper on 4/27/2026. (lccrc3) (Entered: 04/27/2026)
21	Apr 28, 2026	REPLY to opposition to motion re 11 Motion to Dismiss, filed by CENTERS FOR DISEASE CONTROL AND PREVENTION, ROBERT F. KENNEDY, JR, JIM O'NEILL, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES. (Krizel, Zachary) (Entered: 04/28/2026)
22	Apr 29, 2026	NOTICE of Appearance by Todd Sellars on behalf of DALLAS COUNTY, TEXAS (Sellars, Todd) (Entered: 04/29/2026)
23	Apr 29, 2026	NOTICE of Appearance by Jason G. Schuette on behalf of DALLAS COUNTY, TEXAS (Schuette, Jason) (Entered: 04/29/2026)